ASSEMBLY, No. 4125

STATE OF NEW JERSEY

220th LEGISLATURE

INTRODUCED JUNE 2, 2022

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SYNOPSIS

Prohibits sale, manufacture, distribution, and use of firefighting foam containing intentionally added perfluoroalkyl and polyfluoroalkyl substances.

CURRENT VERSION OF TEXT

As introduced.

(Sponsorship Updated As Of: 6/13/2022)

AN ACT concerning perfluoroalkyl and polyfluoroalkyl substances in firefighting foam and supplementing Title 56 of the Revised Statutes.

BE IT ENACTED *by the Senate and General Assembly of the State of New Jersey:*

1. a. Beginning two years after the effective date of this act, no person shall use, or shall sell, offer for sale, manufacture, or distribute for sale or use in the State any class B firefighting foam containing intentionally added PFAS.

b. Subsection a. of this section shall not apply to the sale, manufacture, distribution, or use of class B firefighting foam for which the inclusion of PFAS is required by federal law, or by a rule or regulation adopted pursuant thereto, including, but not limited to, 14 C.F.R. s.139.317. If a federal requirement to include PFAS in class B firefighting foam is revoked, subsection a. of this section shall apply one year after the requirement is revoked.

c. A violation of subsection a. of this section shall constitute an unlawful practice for the purposes of P.L.1960, c.39 (C.56:8-1 et seq.), and the violator shall be subject to all remedies and penalties available pursuant to P.L.1960, c.39 (C.56:8-1 et seq.).

d. As used in this section:

"Class B firefighting foam" means foam designed to prevent or extinguish a fire in flammable liquids, combustible liquids, petroleum greases, tars, oils, oil-based paints, solvents, lacquers, alcohols, and flammable gases.

"Intentionally added PFAS" means PFAS added to a product or one of the product's components to provide a specific characteristic, appearance, or quality or to perform a specific function. "Intentionally added PFAS" also includes any degradation byproducts of PFAS.

"Perfluoroalkyl and polyfluoroalkyl substances" or "PFAS" means substances that include any member of the class of fluorinated organic chemicals containing at least one fully fluorinated carbon atom.

2. This act shall take effect immediately.

STATEMENT

This bill would prohibit, beginning two years after the bill's effective date, the sale, manufacture, distribution, and use of any class B firefighting foam containing intentionally added PFAS within the State. As defined in the bill, "perfluoroalkyl and polyfluoroalkyl substances" or "PFAS" means substances that include any member of the class of fluorinated organic chemicals

containing at least one fully fluorinated carbon atom and "class B firefighting foam" means foam designed to prevent or extinguish a fire in flammable liquids, combustible liquids, petroleum greases, tars, oils, oil-based paints, solvents, lacquers, alcohols, and flammable gases.

The bill's provisions would not apply to the sale, manufacture, distribution, or use of class B firefighting foam for which the inclusion of PFAS is required by federal law or regulation, including, but not limited to, 14 C.F.R. s.139.317. If a federal requirement to include PFAS in class B firefighting foam is revoked, the bill's provisions would apply one year after the requirement is revoked.

A violation of the bill's provisions would be an unlawful practice pursuant to P.L.1960, c.39 (C.56:8-1 et seq.), commonly known as the State's "Consumer Fraud Act." As provided by section 1 of P.L.1966, c.39 (C.56:8-13), an unlawful practice under the Consumer Fraud Act is punishable by a monetary penalty of not more than $10,000 for a first offense and not more than $20,000 for any subsequent offense. In addition, a violation can result in cease and desist orders issued by the Attorney General, the assessment of punitive damages, and the awarding of treble damages and costs to the injured.

PFAS are man-made chemical compounds that have multiple fluorine atoms bonded to a chain of carbon atoms. There are over 4,700 different types of PFAS, and new types are invented on a nearly daily basis. The carbon-fluorine bond that forms PFAS is one of the strongest chemical bonds found in nature and does not break down under typical environmental conditions. As a result, PFAS are nicknamed "forever chemicals" because they accumulate, rather than break down, over time. Since the 1930s, PFAS have been widely used in countless consumer products and are used in certain types of firefighting foam.

There are two major types of firefighting foam, Class A and Class B. Class A firefighting foams are used to extinguish fires caused by wood, paper, and brush and generally do not contain PFAS. Class B firefighting foams are commercial surfactant solutions that have been, and continue to be, stored and used for fire suppression, fire training, and flammable vapor suppression at military installations, civilian facilities, and airports. Class B foams can be divided into two categories: fluorinated foams and fluorine-free foams. Fluorinated foams contain PFAS, and fluorine-free foams do not. Of the fluorinated foams, aqueous film forming foams or "AFFF" are the foams that contain varying amounts and mixtures of PFAS, and for this reason, are of the most concern to human health and the environment.

Studies have indicated that exposure to PFAS, and the resulting accumulation of PFAS in the human body, may be linked to certain adverse health effects. Firefighters, who endure prolonged

exposure to PFAS-based foams, face a greater risk of developing associated health conditions and diseases. In addition, the runoff from firefighting foam containing PFAS can lead to widespread PFAS contamination in the drinking water of surrounding communities near facilities where the firefighting foam is used.

Because PFAS chemicals in firefighting foam jeopardize the health, safety, and well-being of firefighters, it is crucial to prohibit the sale, manufacture, distribution, and use of firefighting foams that contain PFAS within the State.